

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant

Wells Fargo Clearing Services, LLC

Case Number: 25-00978

vs.

Respondent

Eric Alexander Koter

Hearing Site: Pittsburgh, Pennsylvania

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Member vs. Associated Person

REPRESENTATION OF PARTIES

For Claimant Wells Fargo Clearing Services, LLC (“Claimant”): Keith J. Barnett, Esq. and Noah J. Mason, Esq., Troutman Pepper Locke LLP, Atlanta, Georgia, and Seth M. Erickson, Esq., Troutman Pepper Locke LLP, Chicago, Illinois.

Respondent Eric Alexander Koter (“Respondent”) appeared pro se.

CASE INFORMATION

Statement of Claim filed on or about: May 13, 2025.

Claimant signed the Submission Agreement: May 13, 2025.

Respondent did not file a Statement of Answer or sign the Submission Agreement.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a cause of action for breach of promissory note. Claimant alleged that Respondent took a loan which was evidenced by an unambiguous written Promissory Note signed by Respondent, dated March 4, 2022 (“Promissory Note”), which specifically requires Respondent to repay the outstanding principal balance on the Promissory Note, accrued and accruing interest, plus all costs of collection including attorneys’ fees, filing fees and related costs and expenses, and that Respondent has refused to honor his obligations under the outstanding Promissory Note.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested that it be granted an award against Respondent for the following:

1. The principal balance due and owing under the Promissory Note in the amount of \$668,379.00 and interest accrued during the term of the Promissory Note at the rate of 2.12% per annum;
2. Interest at a rate of 5.12% per annum on the balance due and owing under the Promissory Note from the date of default (April 26, 2024) to the date of payment;
3. The costs of collection and of this proceeding, including attorneys' fees as agreed to under the terms of the Promissory Note; and
4. Any and all further relief that the Arbitrator deems just and proper.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

Respondent filed correspondence in response to the arbitration proceeding on July 2, 2025 ("Letter Submission"). In an Order dated September 5, 2025, the Arbitrator ruled that Respondent failed to answer the Statement of Claim and failed to file a Submission Agreement and provided Respondent until September 30, 2025, to do so. Respondent did not file a Statement of Answer or sign the Submission Agreement.

On October 1, 2025, Claimant filed a Motion to Strike Respondent's Letter Submission and Motion for the Arbitrator to Render an Award based on the Pleadings ("Motion to Strike"), to which no response was filed. In an Order dated October 20, 2025, the Arbitrator granted the Motion to Strike and, pursuant to Rule 13413 of the Code of Arbitration Procedure ("Code"), deemed Rule 13807 of the Code to apply. Accordingly, this matter proceeded pursuant to Rule 13807(e)(1) of the Code.

AWARD

After considering the pleadings, the Arbitrator has decided and determined in full and final resolution of the issues submitted for determination as follows:

1. Respondent is liable for and shall pay to Claimant the sum of \$668,378.98.
2. Respondent is liable for and shall pay to Claimant interest on the above-stated sum at the rate of 5.12% per annum (\$93.75 per diem) from May 1, 2024, through and including the date this Award is paid in full.
3. Respondent is liable for and shall pay to Claimant the sum of \$26,000.00 in attorneys' fees pursuant to the terms of the Promissory Note.
4. Respondent is liable for and shall pay to Claimant the sum of \$1,695.00 to reimburse Claimant for the non-refundable portion of the filing fee previously paid to FINRA Dispute Resolution Services.
5. Respondent is liable for and shall pay to Claimant \$300.00 to reimburse Claimant for the Paper Decision Fee previously paid to FINRA Dispute Resolution Services.
6. All payments shall be applied first to attorneys' fees, then to accrued interest, then toward the award amount in Paragraph One above.
7. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, Claimant has paid to FINRA Dispute Resolution Services the \$3,420.00 Member Surcharge and \$6,800.00 Member Process Fee previously invoiced.

Claimant has also paid to FINRA Dispute Resolution Services the \$1,695.00 non-refundable portion of the filing fee and the \$300.00 Paper Decision Fee.

Hearing Session Fees and Assessments

The Arbitrator has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator, including a pre-hearing conference with the Arbitrator, which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session @ \$675.00/session	= \$	675.00
Pre-Hearing Conference: September 4, 2025	1 session	
Total Hearing Session Fees	= \$	675.00

The Panel has assessed the total hearing session fees to Respondent.

ARBITRATOR

Gregory Hunter Mathews

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Gregory Hunter Mathews

Gregory Hunter Mathews
Sole Public Arbitrator

11/03/2025

Signature Date

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November 03, 2025

Date of Service (For FINRA Dispute Resolution Services use only)